

ComplianceCheck

Pay-as-you-go Compliance Assessments for Indian SMEs

POSH Act 2013 Compliance Assessment Report

Sexual Harassment of Women at Workplace Act, 2013
Prevention, Prohibition and Redressal

Prepared For

Sample Enterprises Pvt Ltd

Maharashtra | Manufacturing

Employees: 51-100

Assessment Date: 25 July 2026

40%

Overall Compliance Score

Executive Summary

40%

Overall Compliance Score

Risk Level

High Risk

Penalty Exposure

Rs.1,00,000+

Category-wise Compliance

Category	Score	Compliance
ICC Constitution	40%	4/10
Policy & Documentation	38%	3/8
Training & Awareness	38%	3/8
Display & Communication	40%	2/5
Reporting & Monitoring	43%	3/7
Complaint Handling	43%	3/7

Key Findings

- * Total Compliance Score: 40%
- * Risk Level: High Risk
- * Areas Requiring Attention: 10 High Priority Items
- * Compliant Areas: 18 areas meet requirements

HIGH Priority Action Items

Address immediately to mitigate compliance risks.

HIGH

Policy & Documentation

Define All Five Types of Sexual Harassment per Section 3

"POSH Act 2013, Section 3(2)"

Steps to Address:

1. Review current policy against Section 3(2) requirements
2. Include Type 1: Physical contact and advances
3. Include Type 2: Demand or request for sexual favors
4. Include Type 3: Making sexually colored remarks
5. Include Type 4: Showing pornography
6. Include Type 5: Any other unwelcome physical, verbal or non-verbal conduct of sexual nature
7. Add examples for each type for employee understanding

Deadline: Part of policy creation

Penalty: Incomplete policy may not meet Section 19 requirements; Rs. 50,000+ penalty

Ref: POSH Act 2013, Section 3(2)

HIGH

Policy & Documentation

Communicate POSH Policy to All Employees with Acknowledgment

"POSH Act 2013, Section 19(c)"

Steps to Address:

1. Circulate POSH policy via email to all current employees
2. Request and track policy acknowledgment (digital signature or form)
3. Include POSH policy in employee onboarding packet
4. Obtain acknowledgment from new joiners during induction
5. Maintain central register of acknowledgments
6. Follow up with employees who haven't acknowledged

Deadline: Upon joining (new employees) and annually (all employees)

Penalty: Rs. 50,000+ for Section 19 violation; employees may claim ignorance

Ref: POSH Act 2013, Section 19(c)

HIGH

Policy & Documentation

Review and Update POSH Policy Periodically

"Best Practice; POSH Act 2013, Section 19"

Steps to Address:

1. Schedule policy review with HR and legal team
2. Incorporate recent judicial developments (e.g., virtual harassment coverage)
3. Update ICC member details if changed
4. Review and revise complaint procedure if needed
5. Document review date and changes made
6. Re-communicate updated policy to all employees

Deadline: At least every 2 years

Penalty: Outdated policy may not cover modern scenarios; potential liability

Ref: Best Practice; POSH Act 2013, Section 19

HIGH

Policy & Documentation

Include Sexual Harassment as Misconduct in Service Rules

"POSH Act 2013, Section 19(j)"

Steps to Address:

1. Review current service rules/standing orders
2. Amend to explicitly include sexual harassment as misconduct
3. Define disciplinary consequences for proven harassment (warning, suspension, termination)
4. Update employment contract templates with POSH misconduct clause
5. Get amended standing orders certified if applicable (factories, etc.)
6. Communicate changes to all employees

Deadline: Mandatory requirement under Section 19(j)

Penalty: Disciplinary action may not be enforceable without this; Section 19 violation

Ref: POSH Act 2013, Section 19(j)

HIGH

Policy & Documentation

Address Virtual/Remote Workplace Harassment in Policy

"Sanjeev Mishra v. Bank of Baroda (Rajasthan HC, 2021)"

Steps to Address:

1. Add explicit section covering digital/virtual harassment in policy
2. Include harassment via email, chat applications, video calls
3. Cover social media messages related to work
4. Address inappropriate behavior during screen-sharing
5. Specify that work-from-home environment is "workplace" under POSH
6. Update complaint mechanism for virtual complaint filing

Deadline: Immediate (especially for remote/hybrid workplaces)

Penalty: May not cover modern harassment scenarios; employer liability

Ref: Sanjeev Mishra v. Bank of Baroda (Rajasthan HC, 2021)

HIGH

Training & Awareness

Provide Specialized Training for ICC Members

"POSH Act 2013, Section 19(c)"

Steps to Address:

1. Identify specialized POSH training providers for ICC members
2. Cover: inquiry procedures, evidence handling, natural justice principles
3. Include: timeline management, report writing, confidentiality obligations
4. Address: interim relief recommendations, conciliation process
5. Train on: legal aspects, recent judgments, common procedural errors
6. Document training with certificates and content covered

Deadline: Upon ICC constitution and periodically thereafter

Penalty: Improperly conducted inquiries may be set aside on appeal; Section 19(c) violation

Ref: POSH Act 2013, Section 19(c)

HIGH

Training & Awareness

Include POSH Awareness in New Joiner Induction

"POSH Act 2013, Section 19(c)"

Steps to Address:

1. Add POSH module to employee onboarding/induction program
2. Cover: policy overview, harassment types, ICC details, complaint procedure
3. Make POSH induction mandatory (not optional)
4. Obtain acknowledgment from new joiners
5. Provide POSH policy document during induction
6. Include emergency contact information for ICC

Deadline: During onboarding (within first week)

Penalty: New employees may be unaware of policy and complaint mechanism

Ref: POSH Act 2013, Section 19(c)

HIGH

Training & Awareness

Include Virtual/Remote Harassment Scenarios in Training

"Sanjeev Mishra v. Bank of Baroda (Rajasthan HC, 2021)"

Steps to Address:

1. Update training content to include virtual workplace scenarios
2. Cover: harassment via email, chat, video calls, social media
3. Include: inappropriate behavior during screen-sharing
4. Explain: work-from-home environment as "workplace" under POSH
5. Provide examples specific to digital communication
6. Address boundaries in virtual meetings

Deadline: Immediate for organizations with remote workers

Penalty: Employees may not recognize virtual harassment as covered; incidents may go unreported

Ref: Sanjeev Mishra v. Bank of Baroda (Rajasthan HC, 2021)

HIGH

Training & Awareness

Include Contract Workers, Interns, and Trainees in Training

"POSH Act 2013, Section 2(f)"

Steps to Address:

1. Identify all non-regular employee categories at workplace
2. Include contract workers in annual POSH training
3. Provide interns and trainees with POSH induction
4. Coordinate with contractor/staffing agencies for coverage
5. Maintain separate training register for non-regular employees
6. Ensure their complaints can be received by ICC

Deadline: During their onboarding

Penalty: These workers are covered under POSH; excluding them violates Section 19(c)

Ref: POSH Act 2013, Section 2(f)

HIGH

Training & Awareness

Provide Industry-Specific Training for Third-Party Harassment

"POSH Act 2013, Section 19(a)"

Steps to Address:

1. Identify customer/client/patient-facing roles in organization
2. Develop industry-specific harassment scenarios
3. Include third-party harassment examples in training
4. Train on reporting procedures for non-employee harassment
5. Explain employer actions (blocking access, vendor termination)
6. Provide de-escalation and safety guidance

Deadline: Part of training for customer-facing roles

Penalty: Employees may not recognize third-party harassment as covered; incidents unreported

Ref: POSH Act 2013, Section 19(a)

MEDIUM Priority Action Items

Address within 30-60 days.

MEDIUM

ICC Constitution

Appoint Senior Woman Employee as Presiding Officer

"POSH Act 2013, Section 4(2)(a)"

Steps to Address:

1. Identify senior-level woman employee at your workplace
2. If no senior woman available at current location, nominate from another office of the same employer
3. Issue formal nomination order specifying Presiding Officer role
4. Document selection rationale and seniority level
5. Ensure Presiding Officer is available for ICC proceedings (quorum requirement)

Deadline: Part of ICC constitution (immediate)

Penalty: ICC may be deemed improperly constituted; Rs. 50,000+ penalty under Section 26

Ref: POSH Act 2013, Section 4(2)(a)

MEDIUM

ICC Constitution

Appoint Qualified External Member to ICC

"POSH Act 2013, Section 4(2)(c); POSH Rules 2013, Rule 4"

Steps to Address:

1. Identify NGOs working on women's issues in your district/city
2. Alternatively, find person with 5+ years documented experience in women's empowerment
3. Third option: Person familiar with labor/civil/criminal law AND connection to women's causes
4. Verify qualification: NGO membership certificate OR experience letters OR legal credentials plus women's cause connection
5. Issue formal nomination order with term dates (max 3 years)
6. Arrange payment: Rs. 200/day sitting fee + travel (3-tier AC equivalent) per Rule 6
7. Document external member's qualification in ICC records

Deadline: Part of ICC constitution (immediate for 10+ employees)

Penalty: ICC may be invalidated entirely (Ruchika Singh v. Air France precedent); Rs. 50,000+ penalty

Ref: POSH Act 2013, Section 4(2)(c); POSH Rules 2013, Rule 4

MEDIUM

ICC Constitution

Reconstitute ICC Within 3-Year Maximum Tenure

"POSH Act 2013, Section 4(3)"

Steps to Address:

1. Check constitution date of current ICC from nomination orders
2. If tenure exceeded 3 years, initiate immediate reconstitution
3. Identify eligible members (existing may be reappointed)
4. Issue fresh nomination orders with new 3-year term dates
5. Update displayed ICC constitution order with new dates
6. Maintain calendar reminders for next reconstitution

Deadline: Every 3 years from constitution date

Penalty: Expired ICC = No valid ICC; Section 26 penalties for operating without ICC

Ref: POSH Act 2013, Section 4(3)

MEDIUM

ICC Constitution

Issue Written Nomination Orders for All ICC Members

"POSH Act 2013, Section 4; POSH Rules 2013, Rule 4"

Steps to Address:

1. Create formal nomination order template covering member name, designation, ICC role, effective date
2. Issue individual nomination orders for each ICC member
3. Obtain signed acceptance from each member
4. Specify external member fee and travel reimbursement arrangements
5. Maintain nomination orders in ICC records file
6. Display updated ICC constitution order at workplace

Deadline: At time of ICC constitution

Penalty: Informal appointments may not constitute valid ICC; Section 26 penalties if ICC deemed invalid

Ref: POSH Act 2013, Section 4; POSH Rules 2013, Rule 4

MEDIUM

ICC Constitution

Constitute Separate ICCs at Each Location with 10+ Employees

"POSH Act 2013, Section 4(1) Proviso"

Steps to Address:

1. Audit all office locations and count employees (including contract/temporary)
2. Identify locations with 10+ employees requiring separate ICC
3. Constitute ICC at each qualifying location following Section 4(2) requirements
4. Issue location-specific nomination orders
5. Display ICC constitution order at each location
6. Establish coordination mechanism between ICCs for multi-location complaints

Deadline: Immediate for all qualifying locations

Penalty: Centralized ICC model is explicitly non-compliant; Section 26 penalties per non-covered location

Ref: POSH Act 2013, Section 4(1) Proviso

MEDIUM

ICC Constitution

Document ICC Member Qualifications and Selection Criteria

"POSH Act 2013, Section 4(2); POSH Rules 2013, Rule 4"

Steps to Address:

1. Document Presiding Officer's seniority level and designation
2. Record internal members' credentials (social work/legal background preferred)
3. Obtain external member's NGO membership certificate OR experience letters OR legal credentials
4. Create ICC member profile file with supporting documents
5. Include qualification summary in ICC constitution order

Deadline: At time of ICC constitution

Penalty: ICC may be challenged in legal proceedings; Ruchika Singh precedent shows qualification scrutiny

Ref: POSH Act 2013, Section 4(2); POSH Rules 2013, Rule 4

MEDIUM

Display & Communication

Display ICC Constitution Order with Member Details

"POSH Act 2013, Section 19(b)"

Steps to Address:

1. Create display board with ICC constitution details
2. Include: all member names, their roles (Presiding Officer, members, external member)
3. Provide contact information: email, phone, location
4. Display at prominent locations alongside penal consequences
5. Update immediately when ICC composition changes
6. Consider bilingual display if workforce speaks multiple languages

Deadline: Immediate upon ICC constitution

Penalty: Rs. 50,000+ for Section 19(b) violation; employees may not know how to reach ICC

Ref: POSH Act 2013, Section 19(b)

MEDIUM

Display & Communication

Display Information in Languages Understood by Employees

"POSH Act 2013, Section 19(b)"

Steps to Address:

1. Identify languages understood by majority of workforce
2. Create displays in English plus local language(s)
3. For multi-lingual workforce, consider Hindi as common language
4. Ensure translation accuracy (use professional translation if needed)
5. Update all language versions when content changes

Deadline: Part of display implementation

Penalty: Section 19(b) non-compliance if employees cannot understand displays

Ref: POSH Act 2013, Section 19(b)

MEDIUM

Display & Communication

Provide Multiple Complaint Filing Channels

"POSH Act 2013, Section 9"

Steps to Address:

1. Establish dedicated email ID for POSH complaints
2. Create online complaint form on intranet
3. Enable written complaint submission to ICC or HR
4. Allow direct approach to Presiding Officer
5. Consider anonymous reporting channel for initial concerns
6. Document all channels in policy and displays

Deadline: Part of complaint mechanism setup

Penalty: Single channel may be inaccessible; complaints may be deterred

Ref: POSH Act 2013, Section 9

MEDIUM

Reporting & Monitoring

Include All Required Information in Annual Report

"POSH Act 2013, Section 21"

Steps to Address:

1. Review Section 21 requirements for report contents
2. Include: (a) Number of complaints received during year
3. Include: (b) Number of complaints disposed during year
4. Include: (c) Number of cases pending beyond 90 days
5. Include: (d) Workshops and awareness programs conducted
6. Include: (e) Nature of actions taken by employer/District Officer

MEDIUM

Reporting & Monitoring

Disclose POSH Compliance in Directors' Report

"Companies (Accounts) Rules 2014; POSH Act 2013, Section 22"

Steps to Address:

1. Include POSH compliance statement in Board's Directors' Report
2. Confirm ICC constitution and functioning
3. Disclose number of complaints received and resolved
4. Report cases pending beyond 90 days (now mandatory)
5. Coordinate with Company Secretary for inclusion in Annual Report

Deadline: Part of annual Directors' Report filing

Penalty: Non-compliance with Companies Act requirements; MCA scrutiny

Ref: Companies (Accounts) Rules 2014; POSH Act 2013, Section 22

MEDIUM

Reporting & Monitoring

Establish Board-Level or Senior Management Monitoring

"Aureliano Fernandes v. State of Goa (SC, 2023)"

Steps to Address:

1. Include ICC reporting in Board/Audit Committee agenda
2. For non-corporate entities, establish senior management review
3. Present annual POSH compliance report to Board
4. Escalate critical compliance gaps to Board/senior leadership
5. Document Board engagement and decisions

Deadline: Ongoing

Penalty: Supreme Court emphasized organizational accountability; significant liability without oversight

Ref: Aureliano Fernandes v. State of Goa (SC, 2023)

MEDIUM

Reporting & Monitoring

Register ICC with State Portal (Where Required)

"State-specific mandates (Maharashtra 2017, Telangana 2019, Delhi 2025)"

Steps to Address:

1. Check if your state requires ICC registration
2. Maharashtra: Register with District Women & Child Development Officer
3. Telangana: Register on T-She Box portal (tshebox.telangana.gov.in)
4. Delhi: Register on SHe-Box portal per June 2025 direction
5. Haryana: Submit detailed compliance checklist per December 2023 order
6. Complete registration with ICC details and supporting documents
7. Update registration when ICC changes

Deadline: As per state notification (typically 30-60 days)

Penalty: State-specific penalties; may affect license renewals

Ref: State-specific mandates (Maharashtra 2017, Telangana 2019, Delhi 2025)

MEDIUM

Complaint Handling

Establish Confidentiality Protocols for Complaints

"POSH Act 2013, Section 16; POSH Rules 2013, Rule 12"

Steps to Address:

1. Establish case code system for complaint tracking (not names)
2. Implement restricted access to complaint files
3. Require NDAs from all ICC members
4. Secure physical storage: locked cabinets, restricted access room
5. Protect digital files: password protection, access logs
6. Train ICC on confidentiality obligations

MEDIUM

Complaint Handling

Track 90-Day Inquiry Completion Timeline

"POSH Act 2013, Section 11(4)"

Steps to Address:

1. Create case tracking system with timeline alerts
2. Record complaint receipt date as Day 1
3. Set milestone alerts: 30 days, 60 days, 75 days
4. Track interim stages: respondent reply (10 days), hearings
5. Escalate approaching deadlines to ICC and management
6. Document any extension requests with reasons

Deadline: 90 days from complaint receipt

Penalty: Cases pending beyond 90 days must be reported; delay may be challenged

Ref: POSH Act 2013, Section 11(4)

MEDIUM

Complaint Handling

Document and Enable Interim Relief Options

"POSH Act 2013, Section 12"

Steps to Address:

1. Document interim relief options in policy: transfer, leave, no-contact
2. Include: transfer of complainant or respondent (complainant's choice)
3. Include: paid leave up to 3 months (additional to regular entitlement)
4. Include: restraining/no-contact orders
5. Include: work-from-home arrangements
6. Empower ICC to recommend interim relief
7. Define approval process and implementation timeline

Deadline: Before receiving complaints

Penalty: Complainant safety may be compromised during inquiry

Ref: POSH Act 2013, Section 12

MEDIUM

Complaint Handling

Establish Anti-Retaliation Protection

"POSH Act 2013, Section 19(f)"

Steps to Address:

1. Add explicit anti-retaliation clause in POSH policy
2. Define retaliation: adverse action against complainant/witness
3. Provide separate reporting channel for retaliation concerns
4. Specify consequences for proven retaliation
5. Train managers on anti-retaliation obligations
6. Monitor complainant/witness situation during and after inquiry

Deadline: Part of comprehensive POSH framework

Penalty: Complaints may be deterred; employer liability for victimization

Ref: POSH Act 2013, Section 19(f)

Compliant Areas (18)

These areas meet Sexual Harassment of Women at Workplace Act, 2013 requirements based on your responses

ICC Constitution

- [Y] Constitute Internal Complaints Committee (ICC) with All Required Members
- [Y] Maintain at Least 50% Women Composition in ICC
- [Y] Pay External Member Fees and Travel Reimbursement
- [Y] Establish ICC Member Replacement and Succession Process

Policy & Documentation

- [Y] Maintain Comprehensive Written POSH Policy
- [Y] Ensure POSH Policy is Easily Accessible to All Employees
- [Y] Cover Third-Party Harassment in POSH Policy

Training & Awareness

- [Y] Conduct Annual POSH Awareness Training for All Employees
- [Y] Maintain Training Attendance Records and Documentation
- [Y] Cover Complaint Process and Timelines in Training

Display & Communication

- [Y] Display Penal Consequences at Conspicuous Workplace Locations
- [Y] Make ICC Details Available on Company Intranet/Website

Reporting & Monitoring

- [Y] Submit Annual Report to District Officer
- [Y] Submit Periodic ICC Reports to Management/Employer
- [Y] Retain ICC Records and Inquiry Documents

Complaint Handling

- [Y] Establish Clear Complaint Filing Mechanism
- [Y] Communicate Appeal Mechanism to Employees
- [Y] Assist with Filing Police Complaints (FIR) When Requested

Next Steps & Resources

Recommended Timeline

Period	Action
Immediate	Address HIGH priority items
Short-term (30-60 days)	Complete MEDIUM priority items
Ongoing	Implement LOW priority improvements
Annual	Re-assessment and compliance review

Government Resources

WCD Ministry (POSH)<https://wcd.nic.in>**SHe-Box Portal**<https://shebox.nic.in>**State Labour Dept Portals**[Check your state government website](#)**National Commission for Women**<https://ncw.nic.in>

Applicable Legislation

- * Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013
- * POSH Rules, 2013
- * IPC Section 354A (Sexual Harassment)
- * Companies Act, 2013 (Annual Report Disclosure)

Key Compliance Deadlines

- * ICC Annual Report to District Officer: January 31 annually
- * ICC Board/Company Annual Report: Before Annual General Meeting
- * ICC Inquiry Completion: Within 90 days of complaint receipt
- * Action on ICC Recommendations: Within 60 days of report receipt
- * ICC Member Tenure: 3 years (reappointment required)

Schedule Your Next Assessment

We recommend re-assessing your compliance status every 6-12 months. Visit compliancecheck.co.in to schedule your next assessment.

Disclaimer: This report is generated based on your responses and should not be construed as legal advice. Please consult with a legal professional for specific compliance guidance.

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